

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 22-28

WAY INTERGLOBAL NETWORK LLC.
COMPLAINANT,

V.
SHENZHEN UNIFELIX SCM LIMITED
RESPONDENT.

DECLARATION OF GARY KARDIAN

I, Gary Kardian, declare as follows:

1. I have spent over 48 years in the in the ocean shipping industry, including 13 years at the FMC as the former Director of Office of Service Contracts & Tariffs. I also served as the Export Expert to assist exporters, as well as the Commission's expert witness for Demurrage & Detention (D&D) issues. I am therefore familiar with the customs and practices of the ocean transportation industry, including multimodal shipments with ocean, rail and/or trucking transportation.

2. I have been retained as an expert witness for respondent Shenzhen Unifelix SCM Limited.

3. I have reviewed the documentation for the shipments parties that were involved in this matter, including the 20 containers at issue in these proceedings identified as TCNU6557513, TCNU7351126, TLLU4212160, TLLU5558286, GAOU6616340, TLLU5672365, TCNU6134091, TGBU9704789, TXGU7117086, TXGU7120114, CLHU8963040, FANU1742269, TXGU7119812, TXGU7120330, TXGU7118550, BEAU4986763, UACU5979959, TXGU7118415, TXGU7120120, and TCNU675644 (“20 Containers”).

4. I have reviewed the document entitled “Transport Contract” (CX 1-2), entered into by Way and Unisoft on March 22, 2022 (“TC”).

5. In my opinion, the TC would not qualify as an NVOCC Service Arrangement (“NSA”) under 46 CFR §531.6 in that the TC does not set forth the required provisions for the commodity or commodities involved (§531.6(a)(3), the minimum volume (a)(4), the service commitments ((a)(5)), the line-haul rate ((a)(6)), or the liquidated damages ((a)(7))

6. Similarly, in my opinion the TC would not qualify as an NVOCC Rate Arrangement (“NRA”) under 46 CFR §532.5 in that the TC does not set forth the required provisions to qualify as an NVOCC Service Arrangement (“NSA”) under 46

CFR §531.6 in that the TC does not “clearly specify the rate and terms, as well as the shipment or shipments to which such rate will apply.” (§531.6(d)(1).)

7. Consequently, in my opinion, without having binding terms as to rate or volume, the TC would not be binding on the parties, as either party could have refused to make or take any shipment under its terms.

8. Therefore, in my opinion, the TC is best described as a memorandum of understanding, providing a framework or guidance as to future NSAs to be entered into by the parties after the requisite rates and terms of shipment are supplied, either in the described “Booking Note” or in other written form, such as emails.

9. Additionally, Unifelix issued house bills of lading (“HBL”) for each of the shipments covering the contract of carriage, which set forth the required specificity for the terms of each shipment.

10. Each of the HBLs in this matter specify the terms of shipment to be CY-CY, with delivery to a rail yard in either Chicago or Joliet, Illinois. (CX 135, 270, 340, 402, 670, 513, 553, 778, 898, 978, 1390.)

11. Because Way took possession of the 20 Containers at the railyards in Chicago and Joliet, the HBLs are consistent with how the parties handled the shipments at issue.

12. A true and correct copy of the reverse terms of the HBL are attached to this declaration as Exhibit A, and they are also available under Unifelix's published tariff.

13. Under the reverse terms of the HBL, Way responsible for demurrage charges:

8(2)The Merchant shall comply with all applicable laws, regulation and requirements of customs, port and other authorities and shall bear and pay all duties, taxes, fines, imposts, expenses and losses incurred or suffered by reason thereof..."

...

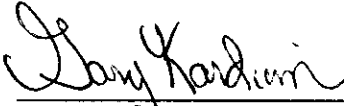
8(5)"The Merchant shall be liable for the ...detention or demurrage before, during and after the Carriage of property (including but not limited to, Containers) of the carrier or any person or vessel (other than the Merchant) referred to in 8(2) above caused by the Merchant or any person acting on his behalf or for which the Merchant is otherwise responsible."

14. Clause 19 of the HBL also give Unifelix a lien on the goods for "all sums whatsoever due at any time to the carrier from the Merchant..."

15. Based upon these terms and the applicable shipping documents, I believe that Way was responsible for the demurrage incurred on these shipment, and that Unifelix had a lien on the 20 Containers to protect Unifelix's interests.

I declare under penalty of perjury under the laws of the United States that the foregoing is true and correct.

Dated: October 6, 2023



Gary Kandian

EXHIBIT “A”

1. DEFINITIONS

Multimodal Transport Operator (hereinafter called carrier) means the Company stated on the face of this Bill of Lading. Merchant includes the shipper, consignee, the Holder of this Bill of Lading, any person owning or entitled to the possession of the Goods or this Bill of Lading.

Goods includes the cargo supplied by the Merchant and includes any Container not supplied by or on behalf of the carrier. Container includes any container, trailer, transportable tank, lift van, flat, pallet or any similar article of transport used to consolidate goods.

Carrier means SHENZHEN UNIFELIX SCM LIMITED

Multimodal transport means carrier undertakes to transport the Goods against the payment of freight for the entire transport from the place where the Goods were received in his charge to the destination and to deliver them to the consignee by two or more different modes of transport, one of which being sea carriage. Port to Port Shipment arises where the Place of Receipt and the Place of Delivery are not indicated on the front of this Bill of Lading or if both the Place of Receipt and the Place of Delivery indicated are ports and the Bill of Lading does not in the nomination of the Place of Receipt or the Place of delivery on the front hereof specify and place or spot within the area of the port so nominated.

Charges includes freight and all expenses and money obligations incurred and payable by the Merchant.

2. APPLICABILITY

Notwithstanding this is the Multimodal Transport B/L, it shall also apply if only carriage of goods by sea is used.

3. JURISDICTION AND APPLICABLE LAW

Any dispute arising under and/or in connection with this B/L shall be determined by the law of the People's Republic of China and any action under and/or in connection with the B/L shall be brought before the Maritime Court in the People's Republic of China.

4. CARRIERS TARIFF

The provisions of the carrier's applicable Tariff, if any, are incorporated herein.

Copies of such provisions are obtainable from the carrier or his agents upon request or, where applicable, from a government body with whom the Tariff has been filed. In the case of inconsistency between this Bill of Lading and the applicable Tariff, this Bill of Lading shall prevail.

5. WARRANTY

The Merchant warrants that in agreeing to the terms hereof he is or is the agent of and has the authority of the person owning or entitled to the possession of the Goods or any person who has a present or future interest in the Goods.

6. CERTAIN RIGHTS AND IMMUNITIES FOR THE CARRIER AND OTHER PERSONS

(1) The carrier shall be entitled to sub-contract on any terms the whole or any part of the Carriage.

(2) The Merchant shall defend, indemnify and hold harmless the carrier against any claim or liability (and any expense arising therefrom) arising from the Carriage of the Goods insofar as such claim or liability exceeds the carrier's liability under this Bill of Lading.

(3) The defences and limits of liability provided for in this Bill of Lading shall apply in any action against the carrier whether the action be found in Contract or in Tort

7. CARRIERS RESPONSIBILITY

(1) PORT TO PORT SHIPMENT

The responsibility of the carrier is limited to that part of the Carriage from and during loading onto the vessel up to and during discharge from the vessel and the carrier shall not be liable for any loss or damage whatsoever in respect of the Goods or for any other matter arising during any other part of the Carriage even though Charges for the whole Carriage have been charged by the carrier. The Merchant constitutes the carrier as agent to enter into contracts on behalf of the Merchant with others for transport, storage, handling or any other services in respect of the Goods prior to loading and subsequent to discharge of the Goods from the vessel without responsibility for any act or omission whatsoever on the part of the carrier or others and the carrier may as such agent enter into contracts with others on any terms whatsoever including terms less favourable than the terms in this Bill of Lading.

(2) MULTIMODAL TRANSPORT

Save as is otherwise provided in this Bill of Lading, the carrier shall be liable for loss of or damage to the Goods occurring from the time that the Goods are taken into his charge until the time of delivery to the extent set out below:

(A) Where the stage of Carriage where the loss or damage occurred cannot be proved, the carrier shall be entitled to rely upon all exclusions of liability under the Rules or legislation that would have applied the loss or damage occurred at sea.

(B) Where the stage of Carriage where the loss or damage occurred can be proved: (i) The liability of the carrier shall be determined by the provisions contained in any international convention or national law of the country which provisions: (a) Cannot be departed from by private contract to the detriment of the Merchant, and (b) Would have applied if the Merchant had made a separate and direct contract with the carrier in respect of the particular stage of Carriage where the loss or damage occurred and had received as evidence thereof any particular document which must be issued in order to make such international convention or national law applicable; (ii) With respect to the transportation in the United States of America or in Canada to the Port of Loading or from the Port of Discharge, the responsibility of the carrier shall be to procure transportation by carriers (one or more) and such transportation shall be subject to the inland carriers' contracts of carriage and tariffs and any law compulsorily applicable. The carrier guarantees the fulfilment of such inland carriers' obligations under their contracts and tariffs; (iii) Where neither (i) or (ii) above apply, any liability of the carrier shall be determined by 7(2)(A) above.

(3) GENERAL PROVISIONS

(A) Delay Consequential Loss

Save as otherwise provided herein, the carrier shall in no circumstances be liable for direct, indirect or consequential loss or damage caused by delay or any other cause whatsoever and howsoever caused. Without prejudice to the foregoing, if the carrier is found liable for delay, liability shall be limited to the freight applicable to the relevant stage of the transport.

(B) Package or Shipping Unit Limitation

The carrier's liability for the loss of or damage to the Goods shall be limited to an amount equivalent to 666.67 Units of Account per package or other shipping unit, or 2 Units of Account per kilogramme of the gross weight of the Goods lost or damaged, whichever is the higher, except where the nature and value of the Goods had been declared by the shipper before shipment and inserted in the bill of lading, or where a higher amount that the amount of limitation of liability set out in this Article had been agreed upon between the carrier and the Shipper.

Where a container, pallet or similar article of transport is used to consolidate goods, the number of packages or other shipping units enumerated in the bill of lading as packed in such article of transport shall be deemed to be the number of packages or shipping units. If not so enumerated, the Goods in such article of transport shall be deemed to be one package or one shipping unit. Where the article of transport is not owned or furnished by the carrier, such article of transport shall be deemed to be one package or one shipping unit.

(C) Ad Valorem: Declared Value of Package or Shipping Unit.

The carrier's liability may be increased to a higher value by a declaration in writing of the value of the Goods by the shipper upon delivery to the carrier of the Goods for shipment, such higher value being inserted on the front of this Bill of Lading in the space provided and, if required by the carrier, extra freight paid. In such case, if the actual value of the Goods shall exceed such declared value, the value shall nevertheless be deemed to be the declared value and the carrier's liability, if any, shall not exceed the declared value and any partial loss or damage shall be adjusted pro rata on the basis of such declared value.

(D) Definition of Package or Shipping Unit.

Where a Container is used to consolidate Goods and such Container is stuffed by the carrier, the number of packages or shipping units stated on the face of this Bill of Lading in the box provided shall be deemed the number of packages or shipping units for the purpose of any limit of liability per package or shipping unit provided in any international convention or national law relating to the carriage of Goods by sea. Except as aforesaid the Container shall be considered the package or shipping unit. The words "shipping unit" shall mean each physical unit or piece of Cargo not shipped in a package, including articles or things of any description whatsoever, except Goods shipped in bulk, and irrespective of the weight or measurement unit employed in calculating freight charges. As to Goods shipped in bulk, the limitation applicable thereto shall be the limitation provided in such convention or law which may be applicable, and in no event shall anything herein be construed to be a waiver of limitation as to Goods shipped in bulk.

(E) Rust, etc.

It is agreed that superficial rust, oxidation or any like condition due to moisture, is not a condition of damage but is inherent to the nature of the Goods and acknowledgement of receipt of the Goods in apparent good order and condition is not a representation that such conditions of rust, oxidation or the like did not exist on receipt.

(F) Notice of Loss or Damage.

The carrier shall be deemed prima facie to have delivered the Goods as described in this Bill of Lading unless notice of loss of, or damage to, the Goods, indicating the general nature of such loss or damage, shall have been given in writing to the carrier or to his representative at the place of delivery before or at the time of removal of the Goods into the custody of the person entitled to delivery thereof under this Bill of Lading or, if the loss or damage is not apparent, within three consecutive days thereafter.

(G) Time-bar.

The carrier shall be discharged of all liability unless suit is brought in the proper forum and written notice thereof received by the carrier within nine months after delivery of the Goods or the date when the Goods should have been delivered. In the event that such time period shall be found contrary to any convention or law compulsorily applicable, the period prescribed by such convention or law shall then apply but in that circumstance only.

8. MERCHANTS RESPONSIBILITY

(1) The description and particulars of the Goods set out on the face hereof are furnished by the Merchant and the Merchant warrants to the carrier that the description and particulars including, but not limited to, of weight, content, measure, quantity, quality, condition, marks, numbers and value are correct.

(2) The Merchant shall comply with all applicable laws, regulations and requirements of customs, port and other authorities and shall bear and pay all duties, taxes, fines, imposts, expenses and losses incurred or suffered by reason thereof or by reason of any illegal, incorrect or insufficient marking, numbering or addressing of the Goods.

(3) The Merchant undertakes that the Goods are packed in a manner adequate to withstand the ordinary risks of Carriage having regard to their nature and in compliance with all laws, regulations and requirements which may be applicable.

(4) No Goods which are or may become dangerous, inflammable or damaging or which are or may become liable to damage any property or person whatsoever shall be tendered to the carrier for Carriage without the carrier's express consent in writing and without the Container or other covering in which the Goods are to be transported and the Goods being distinctly marked on the outside so as to indicate the nature and character of any such articles and so as to comply with all applicable laws, regulations and requirements. If any such articles are delivered to the carrier with such written consent and marking or if in the opinion of the carrier the articles are or are liable to become of a dangerous, inflammable or damaging nature, the same may at any time be destroyed, disposed of, abandoned, or rendered harmless without compensation to the Merchant and without prejudice to the carrier's right to Charges.

(5) The Merchant shall be liable for the loss, damage, contamination, soiling, detention or demurrage before, during and after the Carriage of property (including, but not limited to, Containers) of the carrier or any person or vessel (other than the Merchant) referred to in 8(2) above caused by the Merchant or any person acting on his behalf or for which the Merchant is otherwise responsible.

(6) The Merchant shall defend, indemnify and hold harmless the carrier against any loss, damage, claim, liability or expense whatsoever arising from any breach of the provisions of this clause 10 or from any cause in connection with the Goods for which the carrier is not responsible.

9. CONTAINERS

(1) Goods may be stuffed by the carrier in or on Containers and Goods may be stuffed with other Goods.

(2) The terms of this Bill of Lading shall govern the responsibility of the carrier in connection with or arising out of the supply of a Container to the Merchant, whether supplied before or after the Goods are received by the carrier or delivered to the Merchant.

(3) If a container has been stuffed by or on behalf of the Merchant;

(A) the carrier shall not be liable for loss of or damage to the Goods

(i) caused by the manner in which the Container has been stuffed;

(ii) caused by the unsuitability of the Goods for Carriage in Containers;

(iii) caused by the unsuitability or defective condition of the Container provided that where the Container has been supplied by or on behalf of the carrier, this paragraph (iii) shall only apply if the unsuitability or defective condition arose (a) without any want of due diligence on the part of the carrier or (b) would have been apparent upon reasonable inspection by the Merchant at or prior to the time when the Container was stuffed; (iv) if the Container is not sealed at the commencement of the Carriage except where the carrier has agreed to seal the Container.

(B) The Merchant shall defend, indemnify and hold harmless the carrier against any loss, damage, claim, liability or expense whatsoever arising from one or more of the matters covered by (A) above.

(4) Where the carrier is instructed to provide a Container, in the absence of a written request to the contrary, the carrier is not under an obligation to provide a Container of any particular type or quality.

10. TEMPERATURE CONTROLLED CARGO

(1) The Merchant undertakes not to tender for transportation any Goods which require temperature control without previously giving written notice (and filling in the box on the front of this Bill of Lading if this Bill of Lading has been prepared by the Merchant or a person acting on his behalf) of their nature and particular temperature range to be maintained and in the case of a temperature controlled Container stuffed by or on behalf of the Merchant further undertakes that the Container has been properly pre-cooled, that the Goods have been properly stuffed in the Container and that its thermostatic controls have been properly set by the Merchant before receipt of the Goods by the carrier. If the above requirements are not complied with the carrier shall not be liable for any loss of or damage to the Goods caused by Such non compliance.

(2) The carrier shall not be liable for any loss of or damage to the Goods arising from defects, derangement, breakdown, stoppage of the temperature controlling machinery, plant, insulation or any apparatus of the Container, provided that the carrier shall before or at the beginning of the Carriage exercise due diligence to maintain the refrigerated Container in an efficient state.

11. INSPECTION OF GOODS

The carrier or any person authorized by the carrier shall be entitled, but under no obligation, to open any Container or package at any time and to inspect the Goods.

12. MATTERS AFFECTING PERFORMANCE

(1) If at any time the Carriage is or is likely to be affected by any hindrance, risk, delay, difficulty or disadvantage of any kind (including the condition of the Goods), whensoever and howsoever arising (whether or not the Carriage has commenced) the carrier may:

(A) without notice to the Merchant abandon the Carriage of the Goods and where reasonably possible place the Goods or any part of them at the Merchant's disposal at any place which the carrier may deem safe and convenient, whereupon the responsibility of the carrier in respect of such Goods shall cease;

(B) without prejudice to the carrier's right subsequently to abandon the Carriage under (A) above, continue the Carriage. In any even the carrier shall be entitled to full Charges on Goods received for Carriage and the Merchant shall pay any additional costs resulting from the above mentioned circumstances. (2) The liability of the carrier in respect of the Goods shall cease on the delivery or other disposition of the Goods in accordance with the orders or recommendations given by any government or authority or any person acting or purporting to act as or on behalf of such government or authority.

13. METHODS AND ROUTE OF TRANSPORTATION

(1) The carrier may at any time and without notice to the Merchant: use any means of transport or storage whatsoever; load or carry the Goods on any vessel whether named on the front hereof or not; transfer the Goods from one conveyance to another including transshipping or carrying the same on another vessel than that named on the front hereof or by any other means of transport whatsoever; at any place unpack and remove Goods which have been stuffed in or on a Container and forward the same in any manner whatsoever; proceed at any speed and by any route in his discretion (whether or not the nearest or most direct or customary or advertised route) and proceed to or stay at any place whatsoever once or more often and in any order; load or unload the Goods from any conveyance at any place (whether or not the place is a port named on the front hereof as the intended Port of Loading or intended Port of Discharge); comply with any orders or recommendations given by any government or authority or any person or body acting or purporting to act as or on behalf of such government or authority or having under the terms of the insurance on the conveyance employed by the carrier the right to give orders or directions; permit the vessel to proceed with or without pilots, to tow or be towed or to be dry-docked; permit the vessel to carry livestock, Goods of all kinds, dangerous or otherwise, contraband, explosives, munitions or warlike stores and sail armed or unarmed.

(2) The liberties set out in (1) above may be invoked by the carrier for any purposes whatsoever whether or not connected with the Carriage of the Goods. Anything done in accordance with (1) above or any delay arising therefrom shall be deemed to be within the contractual Carriage and shall not be a deviation of whatsoever nature or degree.

14. DECK CARGO (AND LIVESTOCK)

(1) Goods of any description whether containerised or not may be stowed on or under deck without notice to the Merchant and such stowage shall not be a deviation of whatsoever nature or degree. Subject to (2) below, such Goods whether carried on deck or under deck shall participate in General Average and such Goods (other than livestock) shall be deemed to be within the definition of Goods.

(2) Goods (not being Goods stuffed in or on Containers other than open flats or pallets) which are stated on the front of this Bill of Lading to be carried on deck and which are so carried and livestock, (whether or not carried on deck) are carried without responsibility on the part of the carrier for loss or damage of whatsoever nature arising during carriage by sea or inland waterway whether caused by unseaworthiness or negligence or any other cause whatsoever. The Merchant shall defend, indemnify and hold harmless the carrier against all and any extra cost incurred for any reason whatsoever in connection with carriage of such livestock.

15. DELIVERY OF GOODS

If delivery of the Goods or any part thereof is not taken by the Merchant at the time and place when and where the carrier is entitled to call upon the Merchant to take delivery thereof, the carrier shall be entitled without notice to remove from a Container the Goods or that part thereof if stuffed in or on a Container and to store the Goods or that part thereof ashore, afloat, in the open or under cover at the sole risk and expense of the Merchant. Such storage shall constitute due delivery hereunder, and thereupon on the liability of the carrier in respect of the Goods or that part thereof shall cease.

16. BOTH-TO-BLAME COLLISION

If the vessel on which the Goods are carried (the carrying vessel) comes into collision with any other vessel or object (the non-carrying vessel or object) as a result of the negligence of the non-carrying vessel or object or the owner of, charterer of or person responsible for the non-carrying vessel or object, the Merchant undertakes to defend, indemnify and hold harmless the carrier against all claims by or liability to (and any expense arising therefrom) any vessel or person in respect of any loss of, or damage to, or any claim whatsoever of the Merchant paid or payable to the Merchant by the non-carrying vessel or object or the owner of, charterer of or person responsible for the non-carrying vessel or object or set-off, recouped or recovered by such vessel, object or person(s) against the carrier, the carrying vessel or her owners or charterers.

17. GENERAL AVERAGE

(1) The carrier may declare General Average which shall be adjustable according to the York/Antwerp Rules of 1974 at any place at the option of the carrier and the Amended Jason Clause as approved by BIMCO is to be considered as incorporated herein and the Merchant shall provide such security as may be required by the carrier in this connection.

(2) Notwithstanding (1) above, the Merchant shall defend, indemnify and hold harmless the carrier in respect of any claim (and any expense arising there from) of a General Average nature which may be made on the carrier and shall provide such security as may be required by the carrier in this connection.

(3) The carrier shall be under no obligation to take any steps whatsoever to collect Security for General Average contributions due to the Merchant.

18. CHARGES

(1) Charges shall be deemed fully earned on receipt of the Goods by the carrier and shall be paid and non-returnable in any event.

(2) The Charges have been calculated on the basis of particulars furnished by or on behalf of the Merchant. The carrier shall be entitled to production of the commercial invoice for the Goods or true copy thereof and to inspect, reweigh, remeasure and revalue the Goods and if the particulars are found by the carrier to be incorrect the Merchant shall pay the carrier the correct Charges (credit being given for the Charges charged) and the costs incurred by the carrier in establishing the correct particulars.

(3) All Charges shall be paid without any set-off, counter-claim, deduction or stay of execution.

19. LIEN

The carrier shall have a lien on Goods and any documents relating thereto for all sums whatsoever due at any time to the carrier from the Merchant and for General Average contributions to whomsoever due and for the costs of recovering the same and the carrier shall have the right to sell the Goods and documents by public auction or private treaty, without notice to the Merchant and at the Merchant's expense and without any liability towards the Merchant.

20. VARIATION OF THE CONTRACT

No servant or agent of the carrier shall have power to waive or vary any of the terms hereof unless such waiver or variation is in writing and is specifically authorised or ratified in writing by a director or officer of the carrier who has the actual authority of the carrier to waive or vary.

21. PARTIAL INVALIDITY

If any provision in this Bill of Lading is held to be invalid or unenforceable by any Court or regulatory or self regulatory agency or body, such invalidity or unenforceability shall attach only to such provision. The validity of the remaining provisions shall not be affected thereby and this Bill of Lading contract shall be carried out as if such invalid or unenforceable provision were not contained herein.

22. USA CLAUSE PARAMOUNT

(1) If carriage includes carriage to, from or through a port in the United States of America, the Carrier shall be subject to the United States carriage of Goods by Sea Act of 1936 ("US COGSA"), the terms of which are incorporated herein and shall be paramount throughout carriage by sea and the entire time that the Goods are in the custody of the Carrier or his sub-contractor at the sea terminal in the United States or being transported by non-ocean carriers under a bill of lading covering both water and inland through transportation to or from the United States.

(2) The Carrier shall not be liable in any capacity whatsoever for loss, damage or delay to the Goods, while the Goods are in the United States away from the sea terminal and are not in the actual custody of the Carrier. At these times the Carrier acts as agent only to procure carriage by persons (one or more) under the usual terms and conditions of those persons. If for any reason the Carrier is denied the right to act as agent only at these times, his liability for loss, damage or delay shall be governed by US COGSA.

(3) If US COGSA applies the liability of the Carrier shall not exceed US\$ 500 per package or customary freight unit (in accordance with Section 1304(5) thereof).

(4) If carriage includes carriage to, from or through the United States of America, the Consignor or Consignee may refer any claim or dispute to the United States District Court for the Southern District of New York in accordance with the laws of the United States of America.

CERTIFICATE OF SERVICE

I hereby certify that on the 6th day of October 2022, I served the foregoing **DECLARATION OF GARY KARDIAN** on the parties listed below by e-mail.

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By:



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